

22AHCV00251 22AHCV00251

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-17

Motion: MOTION FOR ATTORNEYS' FEES

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Case Number: 22AHCV00251 Hearing Date: July 17, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

DIANA ALMANZA,

Plaintiff(s),

vs.

GENERAL
MOTORS, LLC,

Defendant(s).

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CASE NO.: 22AHCv00251

[TENTATIVE]

ORDER RE: MOTION FOR ATTORNEYS' FEES

Dept.

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8:30

a.m.

July 17,

2026

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I.

INTRODUCTION

On February 19, 2026, plaintiff Diana

Almanza ("Plaintiff") filed this motion for attorney fees. Defendant General Motors LLC ("Defendant") filed an opposition brief on July 6, 2026. Plaintiff filed a reply brief on July 10, 2026.

Plaintiff requests a fee award of \$76,132.87

in attorney's fees, costs, and expenses, which consists of (1) \$62,083.60 in initially-incurred attorneys' fees; (2) \$4,187.00 to review Defendant's Opposition, draft the reply, attend the hearing thereto, review Defendant's

Motion to Tax Costs, draft Plaintiff's opposition, and attend the hearing thereto (see Supp. Crandall Decl. ¶ 5); (3) \$9,337.27 in previously-awarded costs; and (4) \$525.00 in additional anticipated costs and expenses related to the Court reporter for the hearing on the instant Motion.

Defendant argues that at least \$33,639.10, or 81.8 hours, should be stricken from Plaintiff's fee award and requests a further reduction of 20% of \$5,898.90, for a total fee award of \$23,595.60.

II.

DISCUSSION

Defendant argues Plaintiff's fee request should be reduced because of the use of templates in preparing discovery requests and responses, deposition notices, meet and confer correspondence, motions in limine, and motions in limine, deposition subpoenas, trial documents, the memorandum of costs, and this fee motion. This argument is unpersuasive because even if templates are used, Plaintiff's counsel still must perform work in order to conform those templates to the actual facts of the case. (See *Morris v. Hyundai Motor Am.* (2019) 41 Cal.App.5th 24, 31-33, 39.) Furthermore, the fact that defense counsel routinely uses templates does not mean that Plaintiff's counsel work is necessarily reduced because Plaintiff's counsel still must carefully review Defendant's discovery responses or motions to determine if there are any differences. Also, the time spent on assembling trial exhibits and trial documents is still significant. The exhibits that Defendant invites the Court to compare are still hundreds of pages long and consist of witness lists, exhibit lists, verdict forms, statements of the case, and jury instructions.

Next, Defendant argues that the fee award should be reduced by 0.5 hours for "pre-litigation work" and 0.5 hours to prepare a "repair order chronology." Defendant argues that time spent evaluating a potential client prior to engagement is a business expense routinely treated as overhead and that the preparation of a "chronology" is an administrative/case management task. While the initial client consultation may be an overhead expense, preparing the repair order chronology is not a "administrative" because it requires the review of repair orders and recalls in preparation for subsequent legal tasks, such as responding to discovery requests. Therefore, the fee award will only be reduced by 0.5 hours (\$107.50) to account for any pre-retention/pre-filing work.

Defendant further argues that

Plaintiff's counsel should not have billed 3.4 hours to prepare for Plaintiff's deposition, 1.7 hours to prepare for the deposition of Defendant's PMQ, 2.8 hours to prepare an ex parte application, Defendant does not explain why the amount of time spent on these tasks is unreasonable, other than to say that it should have been less "[g]iven the nature of the litigation and the limited issues involved and Counsel's experience with Song-Beverly litigation." Defendant also challenges Plaintiff's counsel's request for 8.4 hours in travel time, 6.2 hours in "excessive communications", 22.9 hours for clerical work performed by paralegals and 14.5 hours for clerical work performed by attorneys. However, the costs for travel time were reasonably incurred because Plaintiff's counsel needed to attend final status conferences and hearings and Defendant fails to identify, with specificity, the time entries that it deems as "clerical work" or "excessive communication." Additionally, Defendant argues that Plaintiff's counsel used an excessive number of timekeepers (4 attorneys and 10 paralegals) which resulted in inefficiencies and inflated fees warranting a 20% reduction of counsel's time. But again, Defendant does not identify any entries which would demonstrate such purported inefficiencies.

Last, Defendant argues that Plaintiff cannot recover anticipatory fees associated with this motion or Defendant's motion to tax costs. Defendant also argues that Plaintiff cannot recover unpaid costs for Court reporter fees as they have not yet been "incurred." This issue is partially cured by a supplemental declaration from Plaintiff's counsel, in which counsel states that he spent 6.9 hours reviewing Defendant's motion to tax costs, opposing the motion to tax, and preparing the reply brief in support of Plaintiff's fee motion, for a total of \$4,187. Plaintiff does not substantiate the \$525 in "additional anticipated costs and expenses" related to the Court reporter on the hearing on this motion and therefore will not recover that amount.

Accordingly, Plaintiff's fee motion is GRANTED in the total amount of \$75,500.37, consisting of \$9,337.27 in previously-awarded costs and \$66,163.10 in fees.

Dated
this 17th
day of July 2026

William A.

Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.